

STATE OF NEW YORK

8692--A

IN SENATE

January 7, 2026

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- reported favorably from said committee and committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to suspension of a license for failure to pay a fine for impaired driving violations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The subdivision heading and paragraph (a) of subdivision
2 4-a of section 510 of the vehicle and traffic law, the subdivision head-
3 ing as amended by chapter 76 of the laws of 2021, and paragraph (a) as
4 amended by chapter 713 of the laws of 2021, are amended to read as
5 follows:

6 Suspension for failure to answer an appearance ticket or pay a certain
7 fine. (a) Upon receipt of a court notification of the failure of a
8 person to appear within sixty days of the return date or new subsequent
9 adjourned date, pursuant to an appearance ticket charging said person
10 with a violation of any of the provisions of this chapter (except one
11 for parking, stopping, or standing) or for failure to pay a fine imposed
12 pursuant to section eleven hundred ninety-three of this chapter for a
13 violation of section eleven hundred ninety-two of this chapter, of any
14 violation of the tax law or of the transportation law regulating traffic
15 or of any lawful ordinance or regulation made by a local or public
16 authority, relating to traffic (except one for parking, stopping, or
17 standing) the commissioner or [~~his or her~~] the agent of such commission-
18 er may suspend the driver's license or privileges of such person pending
19 receipt of notice from the court that such person has appeared in
20 response to such appearance ticket or has paid or has entered into an
21 installment payment plan to pay the fine associated with a conviction
22 entered as a result of the failure to appear in response to such appear-
23 ance ticket or imposed pursuant to section eleven hundred ninety-three
24 of this chapter for a violation of section eleven hundred ninety-two of
25 this chapter, or the defendant has been acquitted of the charge that led

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 to the suspension or such charge was otherwise dismissed. Such suspen-
2 sion shall take effect no less than thirty days from the day upon which
3 an initial notice thereof is sent by the commissioner to the person
4 whose driver's license or privileges are to be suspended, provided that
5 the commissioner shall send such person at least two notices thereof,
6 including such initial notice, at least fifteen days apart during such
7 period. Any suspension issued pursuant to this paragraph shall be
8 subject to the provisions of paragraph (j-l) of subdivision two of
9 section five hundred three of this ~~chapter~~ title.

10 § 2. Paragraph (b) of subdivision 2 of section 1802 of the vehicle and
11 traffic law, as added by chapter 382 of the laws of 2020, is amended to
12 read as follows:

13 (b) The court or hearing officer shall have the discretion in the
14 interests of justice to reduce or waive the amount of any fine, fee or
15 mandatory surcharge assessed for a violation of any of the provisions of
16 this chapter or any local law, ordinance, order, rule or regulation made
17 by local authorities in relation to traffic, provided, however, the
18 provisions of this paragraph shall not apply to fines imposed pursuant
19 to section eleven hundred ninety-three of this chapter and mandatory
20 surcharges imposed pursuant to section eighteen hundred nine-c and para-
21 graph b of subdivision one of section eighteen hundred nine-e of this
22 chapter for violations of section eleven hundred ninety-two of this
23 chapter.

24 § 3. This act shall take effect on the one hundred eightieth day after
25 it shall have become a law.